

2014 SCC OnLine All 4417

(BEFORE VINEET SARAN AND ATTAU RAHMAN MASOODI, JJ.)

Urmila Devi (Smt.) Petitioner

v.

Dakshinanchal Vidyut Vitran Nigam Ltd. & 3

Others Respondents

Counsel for Petitioner:- Anil Kumar Shukla

Counsel for Respondent:- C.S.C., Baleshwar Chaturvedi

Writ - C No. - 17816 of 2014

Decided on March 28, 2014

Hon'ble Vineet Saran, J.

Hon'ble Attau Rahman Masoodi, J.

The submission of the learned counsel for the petitioner is that though after an inspection in the premises of the petitioner, the petitioner was alleged to be involved in theft of electricity but in the criminal case lodged against the petitioner in this regard, a final report has been filed by the police as the petitioner was not found involved in theft of electricity. According to the petitioner, the said final report has already been accepted by the competent court. The petitioner is claiming the benefit of Clause 8.2(x)(h) of the U.P. Electricity Supply Code, 2005. It is thus contended that the recovery being made from the petitioner in pursuance of the assessment order, which has been passed on the ground of the inspection report, is thus liable to be quashed.

In our view, the matter requires consideration.

Sri. R.S. Umrao has put in appearance on behalf of the respondents no. 1 and 2 and the learned Standing Counsel has accepted notice for the respondent no. 4. They pray for and are granted a month's time to file counter affidavit. The petitioner shall have two weeks thereafter to file rejoinder affidavit.

List immediately thereafter.

Considering the facts and circumstances of this case, it is directed that the recovery from the petitioner in pursuance of the impugned recovery citation dated 30.1.2014 shall remain stayed.

The name of Sri. R.S. Umrao shall also be shown as counsel for the respondents when the case is listed next.

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